

SENATE No. 2207

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regarding information governance.

PETITION OF:

NAME:

Rebecca L. Rausch

DISTRICT/ADDRESS:

Norfolk, Worcester and Middlesex

SENATE No. 2207

By Ms. Rausch, a petition (accompanied by bill, Senate, No. 2207) of Rebecca L. Rausch for legislation relative to regard information governance. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2060 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regarding information governance.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 7 of Chapter 4 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended in clause twenty-sixth by inserting the following subclause:-

3 (k) protected by the attorney-client privilege, the work product doctrine, or other
4 doctrinal protection from disclosure;

5 SECTION 2. Chapter 66 of the General Laws, as appearing in the 2022 Official Edition,
6 is hereby amended by adding the following section:-

7 Section 2. (a) For purposes of this section, the term “information governance plan” or “IG
8 plan” shall mean a comprehensive set of protocols for the efficient retention and routine disposal

of documents and data existing in any format or medium, whether or not said documents and data are deemed public records as defined in clause twenty-sixth of section 7 of chapter 4.

(b) Each agency and municipality subject to the requirements of this chapter with regard to public records shall create, implement, maintain, and enforce a comprehensive information governance plan, including, at minimum, protocols for: storage, naming, privacy, security, routine disposal and methods for halting that disposal when necessary, and appropriate sharing of documents and data existing in any format or medium.

(c) The IG plan shall comply with the state records retention schedule published and maintained by the secretary of the commonwealth.

(d) The IG plan shall itself be a public record, provided that any portions thereof protected from disclosure by one of the exemptions set forth in clause twenty-sixth of section 7 of chapter 4 may be redacted prior to production.

(e) The Attorney General shall enforce the provisions of this section.